

26CHCV01065 26CHCV01065

County: los-angeles

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Case Number: 26CHCV01065 Hearing Date: July 20, 2026 Dept: F43

Dept. F43

Hearing Date: 07-20-26

Case # 26CHCV01065, Gee, et al.

v. Rhodes

Trial Date: N/A

DEMURRER AND MOTION
TO STRIKE AN ANSWER

MOVING PARTIES: Plaintiffs Steven Gee and Sonia Gee

RESPONDING PARTY: Defendant Stephen Rhodes, in pro per

RELIEF REQUESTED

Order sustaining plaintiffs' demurrer to the
defendant's Answer or striking the eleven affirmative defenses in defendant's Answer.

RULING: Demurrer to the Answer's eleven affirmative
defenses is sustained with leave to amend.

SUMMARY OF ACTION

On March 16, 2026, plaintiffs Steven Gee and
Sonia Gee (Plaintiffs) filed this action, seeking declaratory relief as to

their legal rights with respect to ownership of real property. Plaintiffs allege they own real property (Parcel 48) which is adjacent to real property (Parcel 51) owned by defendant Stephen Rhodes (Defendant). In order to access Parcel 48, Plaintiffs, their predecessor, and the owners of several other parcels (Parcels 49 and 50) have utilized a small shortcut over the southern corner of Defendant's Parcel 51 since 1986. Plaintiffs claim their predecessor's use of the shortcut has been actual, open and notorious, continuous, and hostile, without Defendant's or his predecessors' consent.

As such, Plaintiffs assert the shortcut is a valid, binding and enforceable prescriptive easement, appurtenant to Parcel 48, and for the benefit of Parcel 48 as the dominant estate, and thereby imposing a burden and servitude upon Parcel 51, as the servient estate. According to Plaintiffs, Defendant will suffer no harm or damages if the Prescriptive Easement is validated by the court, because the Prescriptive Easement does not impose any meaningful burden on Defendant or Parcel 51, as it represents less than one percent of Defendant's 289,789 square foot estate. In contrast, Plaintiffs will suffer enormous harm and damages if their Prescriptive Easement rights are refuted.

On May 5, 2026, Defendant filed and served an Answer. Defendant is self-represented.

On June 11, 2026, Plaintiffs filed the instant demurrer to the Answer and motion to strike the Answer's eleven affirmative defenses, asserting the Answer fails to state sufficient facts.

On July 7, 2026, Defendant filed an opposition, asserting the defenses are based on factual disputes concerning the roadway, Plaintiffs claimed easement rights, permission, historical use, City planning records, and other matters directly related to Plaintiffs' claims. Defendant's supporting declaration and exhibits provide additional factual detail to support the defenses.

No reply was filed.

MEET AND CONFER

Demurrers and motions to strike must be accompanied by a "meet and confer" declaration stating that the parties met and

conferred “in person, by telephone, or by video conference” and stating that (1) the parties failed to reach an agreement resolving the issues raised in the demurrer and motion to strike; or (2) that the party who filed the pleading subject to the demurrer or motion to strike failed to respond to the meet and confer request or failed to meet and confer in good faith. (Code Civ. Proc., §§ 430.41, subd. (a)(3), 435.5, subd. (a)(3).)

In Department F43, meet and confer means in person or via phone, not by letter or email. (Department F43 Courtroom Information, p. 2.)

The “meet and confer” requirement was met because Defendant met with Plaintiffs’ counsel by telephone on May 12, 2026. (Declaration of David Leventhal ¶ 2.) The parties stipulated to allowing Defendant to file an amended answer by June 5, 2026 and allowing Plaintiffs until June 12, 2026, to file a demurrer to the original answer.

ANALYSIS

A. Demurrer to an Answer

“A party against whom an answer has been filed may object, by demurrer as provided in Section 430.30, to the answer upon any one or more of the following grounds: (a) The answer does not state facts sufficient to constitute a defense. (b) The answer is uncertain, [meaning] ambiguous and unintelligible. and (c) Where the answer pleads a contract, it cannot be ascertained from the answer whether the contract is written or oral.” (Code Civ. Proc., § 430.20, subds. (a)-(c).) “When any ground for objection to a complaint, cross-complaint, or answer appears on the face thereof, or from any matter of which the court is required to or may take judicial notice, the objection on that ground may be taken by a demurrer to the pleading.” (Code Civ. Proc., § 430.30, subd. (a).) “A demurrer to an answer may be taken to the whole answer or to any one or more of the several defenses set up in the answer.” (Code Civ. Proc., § 430.50, subd. (b).) “A demurrer shall distinctly specify the grounds upon which any of the objections to the complaint, cross-complaint, or answer are taken. Unless it does so, it may be disregarded.” (Code Civ. Proc., § 430.60.)

The inquiry is “whether the answer raises a defense to the plaintiff’s stated cause of action.” (Timberidge Enterprises, Inc. v.

City of Santa Rosa (1978) 86 Cal.App.3d 873, 879-880.) A demurrer to an answer “admits all facts well pleaded in the answer, including denials.” (Warren v. Harootunian (1961) 189 Cal.App.2d 546, 548; South Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 733 [noting an answer’s sufficiency depends on the complaint].) “[T]erse legal conclusions” are insufficient and the answer must aver to facts “as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint.” (FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 384.) Moreover, “if one of the defenses or counterclaims is free from the objections urged by demurrer, then a demurrer to the entire answer must be overruled.” (South Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 734.) When “the answer sets up a good defense and denies material allegations of the complaint,” “it is sufficient as against a general demurrer.” (Barasch v. Epstein (1957) 147 Cal.App.2d 439, 443.)

The answer to the complaint must contain (1) the general or specific denial of the material allegations of the complaint controverted by the defendant. and (2) a statement of any new matter constituting a defense. (Code Civ. Proc., § 431.430, subs. (b)(1)-(2).) “New matter” refers to “something relied on by a defendant which is not put in issue by the plaintiff. Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as ‘new matter.’” (Walsh v. West Valley Mission Community College Dist. (1998) 66 Cal.App.4th 1532, 1546, citation omitted [defining “new matter” as “any ground urged in avoidance of the complaint, i.e., some independent reason why plaintiff should be barred from recovery, even if everything alleged in the complaint was true.”].) Any issue on which defendant bears the burden of proof at trial is a “new matter” and must be specially pled in the answer. (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 239)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.)

Here, Defendant’s Answer includes a general denial of each allegation in the Complaint, each cause of action, and Plaintiffs’ alleged damages. (Answer at p. 1.)

Defendant's Affirmative Defenses consists solely of legal conclusions without alleging any supporting facts or incorporating the documents attached to his supporting declaration.

After reviewing the Answer and the demurrer, it appears Defendant attempted to get by with pleading the bare minimum. Defendant pleads conclusory legal conclusion devoid of facts that dispute Plaintiffs' allegations or demonstrate Plaintiffs fail to allege a declaratory relief claim.

Instead, Defendant presents evidence from outside the four corners of the Answer to demonstrate factual disputes: text messages from April, May, and June of 2025; a proposed easement correspondence from April of 2025 through June of 2025; a June 18, 2025, letter to the City of Santa Clarita concerning the easement and access; a City Correspondence Regarding Easement Verification and Access Requirements; Planning Commission Agenda Report, Resolution, and Conditions of Approval; Recorded Covenants, Conditions and Restrictions - Parcel Map No. 8645; and Recorded Parcel Map No. 8645. (Declaration of Stephen Rhodes, Exhs. A-I.)

Defendant does not ask the court to take judicial notice of these documents and provides no explanation for failing to incorporate the exhibits into the Answer or to include allegations concerning the content of the exhibits. (See Evid. Code, § 452.) "The trial court shall take judicial notice of any matter specified in Section 452 if a party requests it and: (a) Gives each adverse party sufficient notice of the request, through the pleadings or otherwise, to enable such adverse party to prepare to meet the request; and (b) Furnishes the court with sufficient information to enable it to take judicial notice of the matter." (Evid. Code, § 453, subds. (a)-(b).)

Defendant must plead his answer with more facts and a greater specificity.

Finally, Defendant fails to cite any legal authority to support the contentions in his Opposition. Absent a good faith basis for modifying or extending an existing law, litigants are generally prohibited from asserting a position in litigation without authority. (See, e.g., *In re Estate of Randall* (1924) 194 Cal. 725, 728-729 ["Contentions supported neither by argument nor by citation of authority are deemed to be without foundation, and to have been abandoned."]; see also *Lafferty v. Wells Fargo Bank* (2013) 213 Cal. App. 4th 545, 571-572 ["When a point is

asserted without argument and authority for the proposition, 'it is deemed to be without foundation and requires no discussion by the reviewing court.'"; Atchley v. City of Fresno (1984) 151 Cal. App. 3d 635, 647 ["Where a point is merely asserted by appellant's counsel without any argument of or authority for the proposition, it is deemed to be without foundation and requires no discussion by the reviewing court."].)

Because Defendant has failed to plead sufficient facts to support his affirmative defenses, the court sustains Plaintiffs' demurrer to the Answer with leave to amend.

B. Motion to Strike

In the alternative, Plaintiffs' asks the court to strike each affirmative defense for failing to adequately state an affirmative defense to the Complaint.

Because the court has sustained the demurrer to the entire Answer, this portion of Plaintiffs' moving papers is moot.

CONCLUSION and ORDER

Demurrer to the Answer's eleven affirmative defenses is sustained with leave to amend.

Defendant Stephen Rhodes may file and serve and amended Answer within twenty (20) days of the issuing of this order.

Plaintiffs to give notice.